

25VECV05016 25VECV05016

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-14

Motion: MOTION TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26 AND REQUEST FOR MONETARY SANCTIONS

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Case Number: 25VECV05016 Hearing Date: August 14, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

PHILLIP A KALE,

Plaintiff,

vs.

FCA US, LLC.; DEPENDABLE CHRYSLER

DODGE JEEP RAM, and DOES 1 through 10,

Inclusive,

Defendants.

CASE NO: 25VECV05016

[TENTATIVE]

ORDER RE:

MOTION

TO COMPEL INITIAL

DISCLOSURES
PURSUANT TO

CALIFORNIA
CODE OF CIVIL

PROCEDURE
§ 871.26 AND REQUEST

FOR
MONETARY SANCTIONS

Dept. W

8:30 a.m.

August 14, 2026

[TENTATIVE] ORDER: The Court DENIES Plaintiff's Motion to Compel Compliance. The Court also DENIES Plaintiff's request for statutory sanctions. Finally, the Court schedules an OSC Re: Sanctions against Plaintiff and their attorney of record for September 14, 2026.

Background

This is a lemon law case. Plaintiff Phillip Kale alleges that on June 5, 2025, he purchased a new Dodge Charger manufactured by Moving Defendant FCA US, LLC. Plaintiff alleges that this vehicle experienced numerous defects with its electric battery and wiring. Plaintiff alleges that even after multiple repair attempts, Defendants were unable to fix these issues.

On September 4, 2025, Plaintiff brought suit against Defendants, alleging six causes of action: 1) Violation of Civil Code § 1793.2(d); 2) Violation of Civil Code § 1793.2(b); 3) Violation of Civil Code § 1793.2(a)(3); 4) Breach of the Implied Warranty of Merchantability (Civ. Code, § 1791.1; § 1794; § 1795.5); 5) Negligent Repair; and (6) Fraudulent Concealment.

Now, Plaintiff moves to compel Defendant FCA US LLC to comply with mandatory discovery disclosures under CCP § 871.26.

Discussion

i)

Motion to Compel Compliance

Plaintiff moves to compel Defendant FCA US LLC to comply with mandatory discovery disclosures under CCP § 871.26(h)(7-13).

In 2024, the California Legislature passed AB 1755, which created multiple new procedural and timing rules for lemon law cases. As part of this bill, the legislature enacted CCP § 871.26, which outlines mandatory discovery requirements for all Song-Beverly cases. This includes the rule that, “[w]ithin 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to [CCP § 871.26] subdivisions (f), (g), and (h).” (CCP § 871.26(b).)

Defendant FAC filed its demurrer on November 19, 2025. (Answer, p. 1.)

Thus, according to Plaintiff, Defendant FCA was obligated to provide all initial disclosures required under CCP § 871.26 by January 18, 2026. Plaintiff states that Defendant has failed to provide the required documents and that the discovery disclosures are untimely. (Rucker Decl. ¶ 4.)

In Opposition, Defendant FAC argues that January 18, 2026, was not the deadline. As Defendant points out, Defendant filed its demurrer on November 19, 2025, putting the 60 statutory deadline on January 18, 2026 – a Sunday. (Opp. p. 1:12-16.) Additionally, January 19, 2026, was MLK Jr. Day, a court holiday. (Ibid.) Thus, Defendant argues that their actual deadline was January 20, 2026. (Ibid.) Defendant also states that on January 20, 2026, they served the initial disclosures on Plaintiff. (Feeley Decl. ¶ 3.)

The Court finds Defendant’s argument correct. Under CCP § 12, “[t]he time in which any act provided by law is to be done is computed by excluding the first day, and including the last, unless the last day is a holiday, and then it is also excluded.” (CCP § 12.) Thus, Defendant is correct that the true

deadline was January 20, 2026 – the same day they served their initial disclosures. Notably, Plaintiff did not file a Reply perhaps acknowledging that his argument has no merit. The Court finds Defendant FCA's initial discovery disclosure was timely under CCP § 871.26.

Additionally, the parties executed a stipulated protective order on August 4, 2026. (Supp. Feeley Decl., ¶ 3.) On August 7, 2026, Defendant served Plaintiff with an additional batch of confidential discovery. (Id. ¶ 5.) It appears that all the discovery at issue in this motion have been resolved.

For these reasons, the Court DENIES Plaintiff's Motion to Compel Compliance.

ii)

Request for Sanctions

Plaintiff also requests \$2,500 in statutory sanctions under CCP § 871.26. Given that the Court has found that Defendant FCA's disclosures were timely under CCP § 871.26, Plaintiff's request for sanctions is denied.

iii)

OSC Re: Sanctions

Finally, the Court schedules an OSC Re: Sanctions against Plaintiff and their attorney of record for September 14, 2026, for abuse of the discovery process.

Under CCP § 2023.030, "the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: (a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both."

Plaintiff's actions in filing this motion constitute an abuse of the

discovery process. Plaintiff asked this Court to compel discovery from Defendant FCA that had already been properly and timely. (See generally, Mot. for Compliance.) However, Plaintiff's motion has multiple glaring omissions.

First, nowhere in Plaintiff's motion do they actually calculate Defendant's deadline for initial disclosures. Plaintiff only points out the initial filing date of the demurrer, and then uses vague and generic language like, "FCA US LLC was required to serve mandatory initial disclosures containing specified documents and information within the timeframes prescribed by statute" and, "[d]espite the passage of substantial time since the commencement of this action and the service of FCA US LLC's Demurrer to the Complaint on November 19, 2025, FCA US LLC has failed to provide complete and compliant disclosures." (Rucker Decl. ¶ 4 [emphasis added].) The Court suspects that Plaintiff's firm deploys this vague boilerplate language so that these motions can be mass-filed in every lemon law case it handles with little to no work or particularization. The downside of that strategy is that, had Plaintiff actually done the work to calculate Defendant FCA's correct deadline, they would have realized that Defendant's initial disclosures were in fact, timely.

Second, even if Plaintiff takes the position that they were aware of these timely initial disclosures, but that Defendant's document production was inadequate, that is something that should be explicitly raised and argued in the motion itself. Plaintiff's motion makes no mention of any disclosure by Defendant on January 20, 2026. (See generally, Mot. for Compliance.) The declaration of Breana Rucker also makes no mention of this fact. (See generally, Rucker Decl.) Until it read Defendant's Opposition, the Court was unaware that Defendant had produced any discovery. Leaving out such crucial information from a discovery motion is misleading, and constitutes a misuse of the discovery process.

A further illustration of Plaintiff's indifferent approach to his case is his paltry meet and confer efforts. Plaintiff sent a single meet and confer email to Defendant FCA on June 2, 2026. (Feely Decl. ¶ 5.) This email was typical discovery boilerplate and does not indicate that Plaintiff made a genuine and good faith effort to meet and confer to resolve any discovery issue without having to burden the court with another unnecessary lemon law discovery motion. (Id. Ex. C.) Moreover, Defendant actually explained to Plaintiff that the initial disclosures were timely via an email on June 16, 2026 – just one day after this motion was

filed. (Feeley Decl. ¶ 7.) Despite having this information directly pointed out to Plaintiff, Plaintiff allowed this meritless motion to proceed.

For these reasons, the Court schedules an OSC Re: Sanctions against Plaintiff and his attorney of record for September 14, 2026.

Conclusion

The Court DENIES Plaintiff's Motion to Compel Compliance. The Court also DENIES Plaintiff's request for statutory sanctions. Finally, the Court schedules an OSC Re: Sanctions against Plaintiff and his attorney of record for September 14, 2026.

IT
IS SO ORDERED.

Plaintiff TO GIVE NOTICE.

August 14, 2026